CFI 062/2021 (1) Sanjeev Sawhney (2) Alka Sawhney v UBS AG

FEBRUARY 24, 2026 COURT OF FIRST INSTANCE - ORDERS

Claim No. CFI 062/2021

IN THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS

IN THE COURT OF FIRST INSTANCE

BETWEEN

(1) SANJEEV SAWHNEY

(2) ALKA SAWHNEY

Claimants/Applicants

and

UBS AG

Defendant/Respondent

ORDER WITH REASONS OF H.E. DEPUTY CHIEF JUSTICE ALI AL MADHANI

UPON the Order of H.E. Deputy Chief Justice Ali Al Madhani dated 7 November 2025 (the "November Order")

AND UPON the Claimants' Appeal Notice dated 28 November 2025 seeking permission to appeal paragraphs 1, 2 and 4 of the November Order (the "Appeal Notice")

AND UPON the Claimants' Application No. CFI-062-2021/13 dated 18 December 2025 seeking an extension of time to comply with and a stay of the November Order (the "Stay and Extension Application")

AND UPON the Order of H.E. Justice Sir Jeremy Cooke dated 26 January 2026 permitting the substitution of UBS AG for Credit Suisse AG as the named Defendant to proceedings

AND UPON the Amended Claim form filed by the Claimants on 9 February 2026 against UBS AG, pursuant to Rule 20.22 of the DIFC Courts

IT IS HEREBY ORDERED THAT:

1. The Appeal Notice is rejected.

2. The Stay and Extension Application is rejected.

3. Costs will be awarded to the Defendant on the standard basis, to be assessed by the Court by way of submissions if not agreed.

Issued by:

Hayley Norton
Assistant Registrar
Date of issue: 24 February 2026
At: 12pm

SCHEDULE OF REASONS

1. The two applications brought by the Claimants will be chronologically considered in this Order; first, the Appeal Notice filed on 28 November 2025, and second the Stay and Extension Application filed on 18 December 2025 (together, "Applications"). Both Applications address the November Order, which had the affect as stated at paragraph 4 of this Order.

Background and Procedural History

2. The claim concerns the classification of the Claimants as Professional Clients for the purpose of opening an Investment Account in January 2012 with the Defendant, who was at the material time 'Credit Suisse'. It is the Claimants' position that they were wrongly treated as expert investors, when they ought to have been classified as Retail Clients, so that the Bank could sell high-risk products to generate fees upon each sale, purchase and restructure. In March 2020, the Bank sold the Claimants' entire portfolio allegedly without consulting the Claimants, which caused huge loss and an arrest of their assets. The Claimants now seek USD 8.37 million for a refund of remaining investment losses and lost profit/interest which they ought to have earned, as well as USD 2 million to compensate for the Bank's alleged wrongful profits and an additional USD 1 million for harm, distress and reputational damage.

3. Insofar as what is relevant to the proceeding applications;

(a) On 25 April 2024, the Defendant filed Application No: CFI-062-2021/7 for a Request for Information Order (the "RFI").

(b) On 14 June 2024, the Defendant filed Application No: CFI-062-2021/8 for a Document Production Order (the "DDPO").

(c) On 19 June 2024, the Claimants filed Application No. CFI-062-2021/9 for a Document Production Order (the "CDPO").

(d) On 7 February 2025, the Claimants filed Application No. CFI-062-2021/10 seeking an order to strike out parts of the Defendant's Re-Amended Defence, and/or for immediate judgment in respect of the Defendant's Re-Amended Defence (the "Strike Out Application").

4. On 15 September 2025, Counsel were heard before H.E. Deputy Chief Justice Ali Al Madhani in respect of all four applications listed above. On 7 November 2025 the November Order was issued, which granted the RFI, rejected the Strike Out Application, and granted the CDPO and the DDPO to a limited extent.

5. On 27 November 2025, the Claimants applied for permission to appeal elements of the November Order (specifically paragraph 1, 2 and 4 insofar as it concerns requests 1, 2, 3, 4, 5, 7 and 8 of the Defendant's DPO) and as part of that application, sought a stay of those parts of the order pending appeal.

6. On 18 December 2025, the Registry directed that the Claimants' Appeal Notice and request for stay shall proceed under the provisions provided under RDC Part 44, with the Respondent due to file its submissions in opposition by no later than 4pm on 19 December 2025.

The Appeal Notice

Relevant Legal Principles

7. This application is brought pursuant to Rule 44.19 of the Rules of the DIFC Courts (the "RDC"), which reads:

"Permission to appeal may only be given where the lower Court or the appeal Court considers that:

(1) the appeal would have a real prospect of success; or

(2) there is some other compelling reason why the appeal should be heard."

8. To succeed, it must be demonstrated that the appeal has a realistic as opposed to fanciful prospect of success *Hexagon Holdings (Cayman) Limited v (1) Dubai International Financial Centre Authority (2) Dubai International Financial Centre Investments* [2019] DIFC CFI 013. It is the Claimants' position that the grounds submitted have a genuine prospect of success in overturning the November Order in that the Court of Appeal will take a different view.

9. In addition, and in the alternative, the Claimants further submit that there are other compelling reasons why the appeal should be heard; overarchingly, the Claimants highlight that there is no existing or determinative authority on the interpretation and application of DIFC law on the Regulatory Law and COB Rules of an Authorised Firm, which in itself constitutes a compelling reason under *American International Group UK Limited v Qatar Insurance Co* [2022] DIFC CFI 003. This will be discussed further in this Order as submitted.

10. The Appeal Notice specifically seeks permission to appeal paragraphs 1, 2 and 4 of the November Order, which read:

(a) The RFI Application is granted.

(b) The Claimants' Strike Out Application is rejected.

(c) Requests 1, 2, 3, 4, 5, 7, 8, 12, 14 and 15 of the Defendant's DPO are granted.

11. On the above the Claimants submit four grounds of appeal. To note, the Claimants only seek permission to appeal requests 1 to 8 of paragraph 4.

First Ground

12. The first ground addresses the dismissal of the Strike Out Application.

13. The Claimants submit that the reasons given for dismissal at paragraphs 41 and 42 were wrong. At paragraph 41, the November Order read:

> "On the basis that the RFI Application has been granted, it naturally follows that the Strike Out Application should be dismissed as the Defendant's RFI Application would be pointless if the corresponding Plea is struck out."

14. The Claimants admit that the Court was correct in linking the Strike Out Application and the RFI but rejecting the RFI on procedural grounds while circumventing the merits of the application was to "put the cart before the horse". The Claimants submit that the purpose of the Strike Out Application was to determine what the Respondent's pleadings were, or ought to have been. It was only once the Strike Out Application had been determined that the Court could reasonably assess whether or not the RFI was relevant. It was correct that the RFI Application would be pointless if the corresponding Plea was struck out was correct, but that does not tell one whether or not the corresponding Plea ought to be struck out, and the Court thereby took into account an irrelevant matter and/or erred as a matter of principle.

15. Paragraph 42 reads:

> "Further, this Plea is foundational in the Defendant's overarching defence as it currently stands and is essential in the type of relief that will be sought. I concede with the Defendant's approach, and in my view the Plea reaches the relevant threshold. A third party's assessment of the [Appellants] is not directly relevant to the Defendant's approach, but if all institutions reached the same conclusion using the same industry practices in accordance with a common interpretation of the relevant guidelines, then there is a reasonable prospect of success on the Defendant's defence. Hence, the Strike Out Application is dismissed."

16. The Claimants submit that the Court fell into error in determining whether the Plea in regard to third-party assessments of the Claimants was "foundational' to their defence, as that was not the question put to the Court. Therefore, any consideration to the foundational nature of this defence is irrelevant and so the conclusion erred in principle.

17. Secondly, it is submitted that the Court was wrong to hold that the relevant Plea has a reasonable prospect of success "if all institutions reached the same conclusion using the same industry practices in accordance with a common interpretation of the relevant guidelines". In this regard, the relevant Plea the Claimants sought to strike out was the Plea introduced by the amendments and repeated in materially similar terms throughout the Re-Amended Defence and to the effect that the questions of whether the Defendant had reasonable grounds for classifying the Claimants as "Professional Clients". On a straightforward construction of the DIFC COB Rules, the reasonableness of an Authorised Firm's conclusion in its categorisation method is not and cannot be 'informed' of any of the conclusions reached by other institutions, industry practices or any common interpretation of the relevant guidelines. COB Rule 2.3.1 isolates the assessment obligation to the assessor. There is no notion within the COB Rules of the reasonable grounds which an Authorised Firm must have, based on its own assessment, being tested or "informed" by reference to classifications or assessments or grounds formed, undertaken or considered by other financial institutions of which the Respondent had no knowledge. Therefore, if the Court's decision is maintained, it would introduce an extra- statutory and ex post facto route for the Authorised Firms to circumvent the COB Rules.

18. Finally, the Claimants submit that the Defendant has no pleaded case based on industry practice or interpretation of relevant guidelines adopted by other financial institutions or itself in relation to its interaction with the Claimants. Therefore, the conclusion reached by the Court was made on irrelevant and wrong considerations.

First Response

19. In response, the Defendant submits that, in a similar thread to the Appeal Notice in general, the November Order involved the exercise of the Court's case management powers. Such decisions are notoriously hard to appeal; as noted recently by the Chief Justice in *ICICI Bank Ltd v Bavaguthu Shetty* [2025], the Court of Appeal will "only intervene with case management decisions in very limited circumstances" [61]. Where the Court has exercised powers under which it has a broad discretion, in general, appellate intervention will only be justified if the case management decision is "so outside the range of a sound discretionary judgment as to manifest error and if the consequence of the decision would be to cause substantial and irremediable injustice" [60]. Therefore, as the Claimants have not actually pointed to an error in law, the Appeal Notice does not meet the threshold.

20. Further, it is submitted that under RDC 44.27, in relation to an application for permission to appeal against a case management decision, the Court may refuse permission where (a) the issue is not of sufficient significance to justify the costs of an appeal, (b) the procedural consequences of an appeal (including delay) outweigh the significance of the case management decision and (c) it would be more convenient to determine the issue at or after trial. These are further reasons for the Court to refuse permission to appeal.

21. To address the first ground specifically, the Court declined to strike out the Defendant's pleading that "[t]he question, as a matter of law and fact, of whether an Authorised Firm had reasonable grounds to conclude that a person had sufficient experience and understanding to be classified as a

Professional Client is informed by how other financial institutions had classified that person at the time, and the grounds on which they did so" (the "Plea"). The Claimants' challenge is submitted to have ignored the factual dimension and focuses solely on the distinct legal question: whether, as a matter of law, the Court may take into account that other financial institutions reached the same classification. The Court did not finally determine that legal question, but held only that the argument had a reasonable prospect of success at [42], properly leaving any conclusive determination to trial. In those circumstances, it is submitted that, as no issue is taken with the factual relevance of the Plea to the Court's enquiry at trial, the Court was correct not to strike out the Relevant Paragraphs.

22. It is further advanced that the criticism that the Court ought to have determined the legal question conclusively at the strike out stage is misplaced. The Court's approach accords with established authority that controversial points of law are not ordinarily resolved on strike out or summary judgment. Reliance is placed on *AK Investment CJSC v Kyrgyz Mobil Tel Ltd* [2012] 1 WLR 1804 at [84], which has been relied on for a related issue of deciding points on jurisdiction by Justice Martin in *Credit Suisse (Switzerland) Limited v Goel* [2020] at [7], where it was recognised that such issues are generally left for trial.

23. The Claimants' complaints have been categorised into four specific criticisms by the Defendant, all of which are submitted to be flawed.

24. First, it is said that the Court dismissed the Strike Out Application because it had already determined to grant the RFI Application, thereby taking into account an irrelevant consideration. That submission relies on [41], where the Court stated that "[o]n the basis that the RFI Application has been granted, it naturally follows that the Strike Out Application should be dismissed as the Defendant's RFI Application would be pointless if the corresponding Plea is struck out." It is submitted that this is a misreading. The Court made clear at [1] that it determined all applications "simultaneously." The proper reading of [41] is that the Court considered the Plea arguable in the context of the RFI Application and adopted a consistent approach in refusing to strike it out.

25. Secondly, the Claimants suggest that the Court treated the Plea as "foundational in the Defendant's overarching defence" and thereby relied upon an irrelevant consideration. That submission is said to misconstrue [42], where the Court observed that the Plea was foundational to the defence as pleaded and essential to the relief sought, including under Article 65(5). The term "foundational" reflected the Defendant's characterisation of the issues at the Hearing. The Court's observation was directed to the relevance of the Plea to the core issues and to the relief claimed, not to any extraneous consideration.

26. Thirdly, the Claimants contend that the Court erred in holding it arguable that, if all institutions reached the same conclusion using the same industry practices in accordance with a common interpretation of the relevant guidelines, that might support the reasonableness of the Defendant's classification. It is submitted that the Court was correct to regard that contention as arguable. Reasonableness is an objective standard which may be informed by market practice. In *St Dominic's Ltd v Royal Bank of Scotland* [2015] EWHC 3822 (QB), HHJ Havelock-Allan QC stated that "evidence

of the practice of banks and other lending institutions … is likely to be helpful and in some instances necessary … the Court cannot (or at least should not) construe the regulatory regime and its component rules in a vacuum." Similarly, in *Marfani and Co v Midland Bank* [1968] 1 WLR 956 at 975, Diplock LJ observed that "this court should be hesitant before condemning as negligent a practice generally adopted by those engaged in banking business." It is therefore said to follow that, if multiple institutions applying the same rules to the same clients reached the same conclusion, that fact may tend to support the contention that the conclusion was reasonable.

27. The Claimants' further arguments; that an Authorised Firm must make its own assessment, and that the COB Rules do not expressly provide for reference to market practice, are said to be beside the point. The issue is not whether an independent assessment is required, but how the Court assesses the reasonableness of that assessment. Nor is the regulator required to prescribe what evidence a court may consider in determining compliance.

28. Fourthly and finally on this ground, the Claimants assert that no relevant "industry practice" or "common interpretation" has been pleaded. It is submitted in response that the Defence pleads that numerous institutions, applying the same COB Rules to the same Claimants, reached the same classification in its Re-Amended Defence at paragraphs 2.2, 38.4.2, and 41.3. That pleaded convergence of outcome is said to constitute the relevant market practice or common interpretation relied upon. The suggested distinction between "market practice" and "industry practice" is characterised as immaterial.

29. In those circumstances, it is submitted that the Court was entitled to conclude that the Plea met the relevant threshold and was arguable, and to leave any definitive resolution of the legal issue to trial. Accordingly, the First Ground is said to have no real prospect of success.

First Conclusion

30. In my judgment, the first ground of appeal does not identify any error of law or principle capable of reversing the dismissal of the Strike Out Application.

31. It is common ground that the Strike Out Application and the RFI Application were linked. That linkage was expressly recognised by the Claimants. The refusal to strike out the Plea was not a procedural shortcut nor a case of "putting the cart before the horse." The applications were determined contemporaneously and consistently. The grant of the RFI did not dictate the refusal of the strike out; both flowed from the same conclusion that the impugned Plea was arguable and properly to be tested on evidence. There was no reliance on an irrelevant consideration.

32. The central complaint advanced by the Claimants is that the November Order impermissibly introduced "industry standard" as an extra-statutory criterion, thereby allowing the Defendant to circumvent the COB Rules. That submission rests on a misreading of the Reasons.

33. The reference to "industry standard" was not the articulation of a freestanding legal test, nor an attempt to supplement or dilute the statutory regime. It was shorthand for the application of an objective standard in assessing reasonableness. The COB Rules require an Authorised Firm to

undertake its own assessment; nothing in the November Order departs from that requirement. However, where the issue is whether the Defendant had reasonable grounds for its classification, the evaluation of reasonableness is not conducted in isolation from factual context. Evidence that other regulated institutions, applying the same regulatory framework to the same clients, reached the same classification may be capable of informing that objective assessment. That is a matter of evidential relevance, not statutory substitution.

34. The issue to be explored at trial is whether the Claimants were classified in a materially similar manner by other banks operating under the same regulatory obligations. If the Defendant's approach was shown to be anomalous or unsupported by any comparable assessment, that may support the Claimants' case. Conversely, convergence of outcomes across regulated institutions applying the same rules may support the Defendant's position. This is central to its defence, and so should not be struck out; this was the conclusion reached. The November Order did not determine which inference should ultimately be drawn; it held only that the contention was arguable and therefore unsuitable for summary disposal.

35. The suggestion that the Court determined a substantive point of law at the interlocutory stage is unsustainable. No final ruling was made as to the proper construction of the COB Rules or the permissible scope of evidential material at trial. The determination was confined to whether the Plea disclosed a real prospect of success. In my view, it did.

36. The criticism that the Plea was described as "foundational" does not expose error. In assessing whether a pleading should be struck out, it is entirely proper to consider its significance within the structure of the defence and the relief sought. That observation did not introduce an extraneous factor; it explained why the Plea could not sensibly be excised without evidential examination.

37. The argument that the COB Rules preclude any reference to market practice conflates two distinct matters; the Firm's obligation to conduct its own assessment, and the Court's task in evaluating the reasonableness of that assessment. The former remains undisturbed. The latter may legitimately be informed by evidence of how similarly regulated entities approached materially identical circumstances. Nothing in the November Order permits an Authorised Firm to abdicate its independent obligation or to justify non-compliance by reference to vague or unparticularised practice.

38. The further submission that no such case has been pleaded is also without force. The Defence pleads, in substance, that multiple institutions applying the same regulatory framework to the same Claimants reached the same classification. Whether that allegation is substantiated is a matter for trial. Its existence is sufficient to defeat a strike out application.

39. The first ground fails to disclose any error of law or principle that would have a real prospect of success in reversing the decision. The November Order did not introduce an extra-statutory standard, did not determine the substantive legal issue in advance of trial, and did not rely on irrelevant considerations. It concluded, correctly, that the impugned Plea was arguable and should be resolved on a full evidential record.

40. The first ground of appeal is therefore rejected.

Second Ground

41. The second ground is that the Court erred in dismissing the Strike Out Application and/or in granting the RFI and the DDPO (for requests 1 to 8) and in holding that an 'industry standard' was a relevant consideration on the pleadings.

42. The Claimants contend that, particularly in regard to paragraphs 42, 53, 73 and 78 of the November Order, the Court regarded an alleged "industry standard" as central to its decision to dismiss the Strike Out Application and to grant the Defendant's applications insofar as they concerned the Claimants' relationships with third-party financial institutions. In paragraph 78, the Court expressly stated that requests concerning those relationships had generally been granted "because" of the Defendant's supposed case as to the relevance of such an "industry standard."

43. The Claimants' primary submission is that this reasoning was erroneous because no such case was pleaded for any of the aforementioned applications. It is emphasised that neither the term "industry standard," nor any analogous formulation such as "common interpretation" or "industry practices," appears in the Re-Amended Defence, nor is there any pleading identifying what the alleged standard was at any material time, or how the Defendant's conduct is said to have conformed to it. In those circumstances, it is submitted that the Court took into account an irrelevant consideration, erred in principle, and/or reached a conclusion outside the permissible ambit of its discretion.

44. The Claimants further submit that, even had such a case been pleaded, any "industry standard" (insofar as it purports to mean something beyond the COB Rules themselves) forms no part of the applicable regulatory regime of the DIFC. The governing standard, they contend, is set by the Regulatory Law and the COB Rules, the construction and interpretation of which are matters of law rather than evidence.

45. Additionally, the Claimants argue that the Court's reasoning is internally inconsistent. On the one hand, the Court relied upon the supposed relevance of an "industry standard" to justify refusing the Strike Out Application and granting requests for information concerning the Claimants' dealings with other institutions. On the other hand, in paragraph 78, the Court refused production of Direct Access Agreements ("DAAs") with third-party financial institutions on the basis that such agreements differ by policy, approach, and product type, and are not materially similar across institutions.

46. The Claimants submit that this conclusion ought logically to have led the Court to find that other interactions with third-party financial institutions were equally irrelevant. They further contend that, in rejecting the request for DAAs on the basis of institutional differences, the Court implicitly assumed, without pleading or evidence, that, unlike such agreements, there exists a materially similar "industry standard" governing client categorisation across institutions. It is submitted that no such case was advanced by the Defendant, and no evidential foundation existed for such a finding. On the contrary, to the extent evidence was available, namely commentary in a DFSA thematic review, it did not demonstrate the existence of any uniform standard.

47. For those reasons, the Claimants submit that the refusal of the Strike Out Application and the grant of the RFI Application and Defendant's DPO Application (insofar as they concerned requests 1 to 8) were wrong in principle and should not stand.

Second Response

48. It is submitted in response that the second ground substantially reprises the third and fourth arguments advanced under the first ground. Therefore, the Defendant repeats its objection in that those arguments are unsustainable. In particular, it is contended that the Defence does plead, in substance, the existence of a relevant market or industry standard, namely that numerous other financial institutions, applying the same COB Rules to the same Claimants, reached the same conclusion that there were reasonable grounds to classify them as Professional Clients. That pleaded convergence of approach is said to constitute the relevant "industry standard" relied upon.

49. Further, it is submitted that the existence of such a standard does, or at least arguably does, support the propositions that: (1) it was reasonable for the Defendant to reach the same conclusion; and (2) the Defendant's belief that it had reasonable grounds to do so was itself reasonable, including for the purposes of Article 65(5). The Court was therefore entitled to regard the position as properly arguable.

50. The Claimants also contend that the Court's reasoning is inconsistent with its conclusion at [78] of the Judgment concerning DAAs, where the Court observed:

> "Direct Access Agreements, and equivalent agreements, are not 'boilerplate' identical agreements even if they serve the same general purpose. It is industry standard for each financial institution to draft its own DAA as a clients' engagement with the institution and the institutions' rights and protections differ by policy, approach and level of investment/product type. The Claimants' understanding and reason for engaging with a third party's DAA does not equate an understanding of and motivation for engaging with another, as DAAs across multiple institutions are not materially similar enough. The Defendant has not sufficiently shown how the Claimants' conduct with third parties with these specific agreement types can show the Claimants' understanding of the Defendant's investment categories and whether the Claimants would have done the same had the Defendant acted otherwise."

51. It is contrarily submitted by the Defendant that there is no inconsistency. The Court's reasoning at [78] was that one cannot infer, from the execution of a DAA with one institution, that a client would necessarily do so with another, given material differences in contractual terms. That conclusion does not contradict the separate proposition that, if multiple institutions independently assessed the Claimants' knowledge and experience and reached the same classification outcome, that fact may bear upon the reasonableness of the Defendant's own assessment.

52. In substance, the Claimants' complaint is again that the Court did not determine these issues conclusively in their favour at the strike out stage. It is submitted that the Court was correct to conclude that the Defendant's position was arguable and to leave final determination to trial.

Accordingly, the Second Ground is said to have no real prospect of success.

Second Conclusion

53. The second ground does not establish any error in principle in the refusal of the Strike Out Application or in the grant of the RFI and DDPO in respect of Requests 1 to 8. It largely reprises the objections addressed under the first ground and proceeds from the same mischaracterisation of the November Order.

54. For the reasons already given, the reference to “industry standard” was not the adoption of an extra-statutory rule, nor the elevation of market practice into a normative source of obligation. It was used as a descriptive shorthand for an objective evidential inquiry relevant to the pleaded issue of reasonableness. The statutory framework remains the Regulatory Law and the COB Rules; the evidential question is whether, and to what extent, convergence of classification outcomes among regulated institutions applying the same rules to the same clients may inform the assessment of whether the Defendant had reasonable grounds for its own classification. That proposition is at least arguable. It was therefore impermissible to strike out the Plea or to refuse disclosure directed to it on the footing that such material is irrelevant as a matter of law.

55. The contention that no such case was pleaded is not borne out. The defence pleads, in substance, that multiple financial institutions, applying the same regulatory regime to the same Claimants, reached the same classification. That pleaded convergence is sufficient to ground the relevance of Requests 1 to 8 at the disclosure stage. Whether the pleaded case is ultimately proved, and what weight any convergence should carry, are matters for trial. The absence of a fully particularised “industry standard” does not render the pleaded contention irrelevant; it underscores why targeted disclosure is required to test it.

56. The submission that the governing standard is purely a matter of law and cannot be informed by evidence conflates the content of the legal obligation with the Court’s evaluative task in determining compliance. The COB Rules prescribe the obligation; they do not preclude the Court from considering factual material that may bear upon whether the Defendant’s assessment was reasonable in context. Disclosure directed to third- party classifications is therefore capable of being relevant to the pleaded defence and to the relief sought.

57. There is no internal inconsistency between the treatment of third-party classifications and the refusal of production of DAAs. The refusal in respect of those agreements rested on their lack of material comparability across institutions given differences in contractual terms, policies, and product structures. By contrast, independent assessments of the Claimants’ knowledge and experience undertaken by regulated institutions under the same regulatory framework are, in principle, comparable for the limited purpose of evaluating reasonableness. Distinct categories of material were treated according to their respective probative value. That differentiation was a proper exercise of case management discretion and does not evidence reliance on an irrelevant consideration.

58. The language of the November Order does not assume the existence of a uniform standard or make any evidential finding to that effect. It recognises only that the Defendant's case that comparable institutions applying the same rules reached the same classification is arguable and that disclosure directed to testing that case is proportionate at this stage. The grant of Requests 1 to 8 reflects that limited, procedural conclusion. It does not determine the substantive legal issue, which remains for trial on a full evidential record.

59. The second ground fails to demonstrate that the November Order treated "industry standard" as a legally operative criterion, relied on a non-pleaded case, or proceeded on an irrelevant consideration. The reasoning that third-party classifications may be evidentially relevant to the pleaded issue of reasonableness is consistent with the analysis given under the first ground and falls squarely within permissible case management judgment.

60. Accordingly, the second ground of appeal is rejected as it does not have a realistic prospect of success.

Third Ground

61. The third ground is run in the alternative to the second if it is determined that "industry standard" was a relevant issue on the pleadings in that the Court nevertheless erred in rejecting the Strike Out Application and/or in granting the DDPO and RFI.

62. In particular, the Claimants challenge the Court's reasoning at paragraphs 42, 53, 73 and 78 of the Reasons, insofar as the Court treated the existence of an "industry standard" as rendering relevant information and documentation concerning the Claimants' actual relationships with third-party institutions, including those institutions' categorisation of the Claimants as clients, and as justifying disclosure said to be reasonably necessary for the Defendant to prepare its case or understand the case it had to meet.

63. The Claimants observe that a central feature of the Court's reasoning was the perceived relevance of the concept of an "industry standard" (or materially similar formulations). Whilst the Second Ground proceeds on the basis that no such case was pleaded, the Claimants contend under this alternative ground that, even if they are wrong in that respect, the Court's reliance on the concept was nonetheless erroneous.

64. They submit that the term "industry standard," and related expressions such as "common interpretation" or "industry practices," connote a shared or common understanding across financial institutions as a class. However, even if such a concept were relevant on the pleadings, the Claimants contend as follows.

65. First, in relation to the Strike Out Application, the specific pleas relied upon by the Defendant (namely paragraphs 82.7.1B, 84.8.1B, 89.8.1B and 94.7.1B) make no reference to any "industry standard," "common interpretation," or "industry practices." Rather, they are confined to the factual question of how other financial institutions classified the Claimants at the material time and the

grounds upon which they did so. On that basis, the Claimants submit that, even if a broader industry concept were otherwise relevant, it provided no proper foundation for refusing the Strike Out Application.

66. Secondly, in relation to the RFI and the DDPO (insofar as they concern requests 1 to 8), the Claimants submit that documents and information relating to their interactions with other financial institutions could not, as a matter of logic, establish or illuminate any "industry standard," "common interpretation," or "industry practices" as between those institutions, whether including the Defendant or not. At most, such material would reveal individual institutional decisions, not an industry-wide standard.

67. Accordingly, the Claimants submit that, even if the concept of an "industry standard" were properly in issue on the pleadings (contrary to the Second Ground), the Court erred in relying upon it in determining the Strike Out Application and/or the RFI and the DDPO (in relation to requests 1 to 8). In so doing, they contend that the Court took into account an irrelevant consideration, erred in principle, and/or acted outside the proper scope of its discretion. On that basis, it is submitted that the impugned decisions were wrong.

Third Response

68. The objection to the third ground is relatively short and based on a different interpretation of the November Order, in that references to an "industry standard" was simply the way in which other financial institutions classified the Claimants. In other words, by referring to the potential relevance of the industry standard, the Judge was simply recognising UBS' submission that how other financial institutions classified the Claimants was relevant, which in turn meant that documents and information as to interactions between the Claimants and other financial institutions were relevant.

69. Again, the Defendant repeats that the Claimants' criticism is that the Court did not decide these matters in favour of the Claimant, and so relies on a misinterpretation of the November Order with no real prospect of success.

Third Conclusion

70. The third ground proceeds on the alternative footing that, even if reference to an "industry standard" were permissible, the Court nevertheless erred in treating third-party classifications and related materials as relevant to the Strike Out Application and to Requests 1 to 8. That contention cannot be sustained for the reasons already given under the first and second grounds.

71. As stated, the passages relied upon by the Claimant (being paragraphs 42, 53, 73 and 78 of the November Order) do not elevate a freestanding "industry standard" into a legal criterion. Paragraph 42 records only that, if multiple institutions applying the same regulatory framework reached the same classification, the Defendant's case would be arguable. Paragraph 53 explains why, for the limited purpose of Article 65(5), evidence of how similarly regulated institutions approached classification may inform whether the Defendant reasonably believed it was acting lawfully. Paragraph 73 identifies the relevance of third-party interactions to the evidential context in which the reasonableness of the

Defendant's assessment falls to be evaluated. Paragraph 78 grants disclosure of communications and classifications on that basis while refusing production of DAAs precisely because they are not materially comparable across institutions. Properly understood, these passages address evidential relevance and comparability, not the creation of a new normative rule.

72. At risk of rehearsing addressed matters, the Claimants' submission that materials concerning their dealings with other institutions cannot, objectively, illuminate the pleaded case as misplaced. The pleaded convergence of classification outcomes is itself the matter to be tested. Documents showing how other regulated institutions assessed and categorised the same clients are capable of bearing on that issue. Whether such material ultimately establishes anything of probative weight is a matter for trial; its potential relevance at the disclosure stage is sufficient.

73. The differentiation drawn in paragraph 78 between comparable classification assessments and non-comparable contractual instruments answers the alleged inconsistency. The refusal of DAAs reflects a lack of material similarity; the grant of Requests 1 to 8 reflects the potential comparability of independent regulatory assessments. That is a coherent application of relevance, not error.

74. The third ground discloses no error of principle in refusing the Strike Out Application or in granting the RFI and DDPO in respect of Requests 1 to 8. The reasoning in the November Order addressed evidential relevance within the statutory framework and remained consistent with the approach explained under the first and second grounds. The Defendant's interpretation is correct. The third ground of appeal is rejected.

Fourth Ground

75. On the fourth ground, the Claimants submit that the Court erred in rejecting the Strike Out Application and/or in granting the DDPO and RFI, and in doing so mischaracterised the Claimants' case on misclassification as one grounded in negligence.

76. The Claimants submit that it is apparent from the Reasons, particularly at paragraphs 52, 53, 54, 69 and 73, that the Court approached the applications on the footing that the Claimants' central complaint, namely their alleged misclassification by the Defendant as Professional Clients, was advanced as a negligence claim. They observe that the Court repeatedly referred to "negligence," "breach of duty of care," and considerations of "reasonableness" when addressing the client-classification issue, which the Court itself had earlier identified (at paragraph 3) as a central issue in the proceedings.

77. The Claimants contend that this was an error. They submit that they do not advance a claim in negligence. Rather, their primary and self-standing case in relation to client classification is that the Defendant acted in breach of the DIFC Regulatory Law. In particular, they rely upon the allegation that the Defendant failed to undertake the requisite investigation and analysis of each Claimant's financial experience and wrongly classified them as Professional Clients instead of Retail Clients.

78. They further submit that, because the Defendant was not authorised under its DFSA licence to provide Financial Services to Retail Clients, that misclassification had a distinct statutory consequence: namely, that the Defendant was, at all material times, providing Financial Services in or from the DIFC in breach of the Financial Services Prohibition under Article 41 of the Regulatory Law. The pleaded consequences of that breach are submitted to include that any agreements or trades entered into were of no effect and/or unenforceable by the Defendant, and that the Claimants are entitled to compensation pursuant to Articles 94 and/or 65(2) in respect of sums paid and losses incurred.

79. The Claimants acknowledge that the Court correctly summarised their central case in the introductory section of the Reasons. However, they submit that, in its substantive analysis of the applications, the Court framed and assessed the case through the lens of negligence rather than by reference to the pleaded statutory breach. In so doing, they contend, the Court failed to consider the case as actually advanced and thereby failed to take into account a material matter, with the result that its decisions on the applications were flawed.

Fourth Response

80. It is submitted in response that the fourth ground is again entrenched in a misreading of the November Order. The Court expressly recognised that the Claimants' principal claim is for relief under Article 65 of the Regulatory Law, on the basis that the Defendant breached the Financial Services Prohibition by providing Financial Services when the Claimants were not properly classified as Professional Clients. The Court also acknowledged that third-party classifications were said to be relevant to the question of relief under Article 65(5). Further, the Court identified the Claimants' reliance on Article 94(2), concerning the alleged sale of unsuitable products, with reference to COB 3.4.2.

81. It is submitted that the Court's references to "reasonableness" reflect the language of the applicable regulatory provisions rather than any mischaracterisation of the cause of action. Under COB 2.3.2, a firm may classify a client as a Professional Client only where it appears on "reasonable grounds" that the client has sufficient experience and understanding. Similarly, COB 3.4.2 requires a "reasonable basis" for recommending a financial product. The Court's use of the language of reasonableness is therefore said to arise from the statutory and regulatory tests themselves.

82. The fact that conduct may be described as unreasonable, or even negligent in a colloquial sense, does not mean that the Court treated the claims as arising under the law of negligence. It is noted that the November Order contains no reference to Chapter 2 of the Law of Obligations or to any of its provisions.

83. Accordingly, it is submitted that nothing in the Court's reasoning suggests that it misunderstood the nature of the Claimants' causes of action, nor that any such misunderstanding affected the determination of the Strike Out or RFI Applications. The fourth ground is therefore said to be based on a misreading of the Reasons and to have no real prospect of success.

Fourth Conclusion

84. In my view, the basis for this ground is misconceived and rests upon a misreading of the November Order. The Court expressly acknowledged that the Claimants' Claim is founded upon statutory obligations under the Regulatory Law, including their reliance on Article 65 for relief arising from the alleged provision of Financial Services to misclassified clients, and on Article 94(2) and COB 3.4.2 concerning the recommendation of financial products. The Court also recognised the relevance of third- party classifications to the scope of relief under Article 65(5).

85. References in the Reasons to "reasonableness" do not indicate that the Court treated the Claimants' case as one in negligence. On the contrary, the statutory and regulatory framework employs precisely this terminology: COB 2.3.2 permits classification of a client as a Professional Client only where it appears on "reasonable grounds" that the client possesses sufficient experience and understanding; COB 3.4.2 requires a "reasonable basis" for the recommendation of a financial product. The Court's use of these terms derives directly from the statutory language and evidential context for the sake of consistency and genuine engagement with the rules; it does not import or invoke the law of negligence, but a general objective approach. Indeed, the November Order contains no reference to Chapter 2 of the Law of Obligations or any other negligence- based regime.

86. The Claim fundamentally concerns a determination on whether the Claimants were unsophisticated investors wrongly classified as Professional Clients and advised to invest in unsuitable products, or, on the Defendant's case, highly sophisticated and prolific investors with extensive prior experience, including dealings with numerous regulated institutions that had classified them as Professional Clients without objection. At the Hearing, the Defendant emphasised that the issues of the Claimants' "knowledge and experience" and "risk appetite and investment objectives" were foundational to its defence. The Court accepted that these issues were indeed foundational to the proceedings, and the reference to "foundational" in paragraph 42 of the Reasons reflects that acceptance, without determining the substantive merits.

87. Given the centrality of these issues and the evidential inquiry that will be conducted at trial, it was entirely proper for the Court, in the exercise of its case management powers, to require the Claimants to provide information regarding their "knowledge and experience" and "risk appetite and investment objectives." This has been partially achieved with the production of the Second Claimant's degree certificate, which is discussed further below. The Court's reasoning in this regard is accurate. I summarised the Claimants' submissions as a confirmation that the nature of the cause of action and the relief sought was understood, and that I approached the applications with full regard to the statutory framework and the COB Rules, which govern the Claim.

88. Nothing in the November Order suggests that the Court mischaracterised the Claimants' statutory cause of action as one in negligence, nor that any purported mischaracterisation affected its determinations on the Strike Out, DDPO, or RFI Applications.

89. In my judgment, the fourth ground of appeal does not demonstrate any error of law or principle capable of undermining the Court's decision to refuse the Strike Out Application or to grant the DDPO and RFI. The ground is misconceived and is accordingly rejected on the basis that it carries no reasonable prospect of success in reversing the decision in the November Order. Therefore, it is rejected.

Other Compelling Reasons

90. In addition, and in the alternative, the Claimants submit that there is a compelling reason for the appeal to be heard on the basis that it would clarify an important point of DIFC law where there is no determinative authority.

91. The key legal issue in these circumstances is whether an Authorised Firm's compliance with its statutory duties under the Regulatory Law and COB Rules can be judged by reference to:

(a) What other financial institutions do, or

(b) Alleged industry standards or practices, which were referenced without qualification in the November Order.

92. The Claimants submit that this matter has wider public policy importance as the DIFC is a major international regulated financial centre, which demands legal consistency, and allowing firms to justify breaches by relying on unqualified "industry practice" could lead to regulatory arbitrage thus weakening investor protection and unnecessarily creating complex and costly proceedings by including third parties in disputes to assess standards. As the current law and authority do not resolve this issue, the Court of Appeal should decide the matter.

93. It is submitted in response that this question was not before the Court for determination. The Court was only required to consider whether the point was arguable as part of its assessment of the Strike Out Application. The issue of whether this is arguable is of limited significance because it does not prevent the Claimants, or any litigant, from challenging at trial the relevance of other institutions' actions to the reasonableness of the Authorised Firm's decision.

94. It is further submitted that the Court was entirely correct in following its usual practice of not deciding substantive points of law at the interlocutory stage, as reflected in *Kyrgyz Mobil Tel Ltd*. The fact that the Claimants consider the point to be important weighs against an appeal at this stage, as substantive questions are properly addressed at trial when the Court has the benefit of full evidence.

95. Accordingly, it is submitted that there is no compelling basis for granting permission to appeal.

Compelling Reasons Conclusion

96. In my view, the Claimants' alternative reasons for the Appeal Notice to be granted are not satisfactory. The question identified by the Claimants concerns the proper legal evaluation of regulatory compliance and the relevance, if any, of industry practice. That issue does not presently arise for determination in a dispositive sense. At this interlocutory stage, the Court has been

concerned only with whether the pleaded case discloses an arguable basis upon which the proceedings may continue. I have not determined, nor was I required to determine, any substantive point of law governing the standard of conduct applicable to an Authorised Firm.

97. I therefore accept the Defendant's submission that questions of this nature are properly resolved at trial, when the Court has the benefit of full evidential findings, developed legal argument, and a complete factual matrix. The causes of action and the parties' respective positions may evolve as disclosure is completed and evidence is tested. It would therefore be premature for the Court to determine, in the abstract and in advance of trial, a question framed as one of wider public policy. The absence of determinative authority does not, of itself, render interlocutory consideration necessary or appropriate. On the contrary, the importance attributed to the issue reinforces that it should be addressed, if required, in the context of final determination rather than on a partial evidential record.

98. Accordingly, the Court concludes that no sufficient basis has been established for granting permission to appeal on the ground of alternative compelling reasons. The request to admit the Appeal Notice on that basis is refused.

The Stay and Extension Application

99. This application seeks an extension of time for compliance with the November Order, and a stay of proceedings in the interim.

The Extension Application

100. The relief sought is twofold: first, an extension until determination of the stay application ("Extension 1"); and second, in the alternative, if the stay is refused, a further extension until 30 days after such refusal ("Extension 2").

101. In support of Extension 1, the Claimants submit that requiring compliance before the stay application is determined would substantially undermine the purpose of seeking a stay. They contend that, if they are compelled to comply in the interim, the appeal and stay application would be rendered nugatory. They further submit that compliance by 19 December 2025 is not feasible in any event, for the reasons advanced in support of Extension 2, such that refusal of an extension would expose them to breach solely because the stay application remains undetermined.

102. As to Extension 2, the Claimants rely on the breadth and complexity of the disclosure required under paragraph 4 of the November Order, read together with requests 1 to 8 of the DDPO Application and the associated RFI. They submit that these requests encompass extensive categories of documents concerning their relationships with other financial institutions over a period exceeding a decade, in some instances without meaningful temporal limitation. Compliance would require a substantial exercise of searching for, locating, and reviewing documents to assess responsiveness and to extract information necessary to respond properly to the RFI.

103. The Claimants explain that, as private individuals, they do not possess institutional document management systems or indexed digital archives. Their records, both physical and electronic, are held across multiple locations, including premises on Mankhool Road, a residence in Al Kifaf, and a warehouse in International City. The search process must therefore be conducted manually and with care. They further state that their personal and financial materials are intermingled with professional records, necessitating a careful review to avoid disclosure of privileged, irrelevant, confidential, or commercially sensitive material. That review, they submit, would in practice require the involvement of solicitors and counsel.

104. The Claimants also rely on personal circumstances. They are private individuals of advancing age who contend that their life savings were depleted by the Defendant's alleged wrongdoing and that they are funding these proceedings from their own resources. They further refer to existing and imminent travel commitments to India, with their return to Dubai not anticipated until late January 2026, which they say materially affects their ability to access and review the relevant records within the current timetable.

105. In reply, the Defendant highlights the deadline for compliance with the RFI and DDPO has now passed, and so the Claimants are already effectively in breach; therefore, the Extension Application is a veiled attempt to retrospectively circumvent that breach. The Claimants waited until the last moment to issue their Appeal Notice. Any consequence suffered is a result of the Claimants' own conduct and should not be rewarded by an order that would validate that conduct.

106. It is further submitted that the alternative extension, being 30 days following refusal of the Stay Application, offers no justification. On the evidence, it appears that the Claimants are attempting to carry out document production without assistance from their solicitors, hence reliance on their individual circumstances to seek an extension and stay.

107. The Claimants assert that they "do not maintain a digital or indexed document filing system" and so "any review process is therefore entirely manual" requiring them to "sort through physical records stored across various locations". This cannot be true for all of the documents in question. Requests 1 to 8 are all for communications or documents that would have been attached to email communications. Much of what the Defendant requires, therefore, should be readily obtainable simply by searching the Claimants' inboxes, and so the 10-year time period and travels to India are irrelevant excuses as all it takes to produce is a proper keyword search which can be done anywhere. The Defendant finally stresses that the Claimant should be using their solicitors to help them with this.

<u>The Stay Application</u>

108. In support of the stay, the Claimants rely on the eighth witness statement of Daleep Kumar Singh ("Singh 8"). The evidence there advanced is directed to the prejudice which would arise if compliance were required pending determination of the appeal, and not to the substantive merits of the appeal itself. It is submitted that, in addition to what has already been addressed, the Claimants will suffer material and significant prejudice if their appeal ultimately succeeds but the stay is rejected. The

Claimants would have incurred substantial and irrecoverable time and cost in undertaking a wide-ranging disclosure exercise which, on their case, ought never to have been required. Time expended cannot be restored, and they contend that, even if successful, recovery of costs would in practice be incomplete. Further, if their appeal is well-founded, the material sought is irrelevant and inherently personal and confidential, and ought not to be disclosed to the Defendant or the Court at all.

109. By contrast, the Claimants submit that any prejudice to the Defendant occasioned by a stay or short extension would be limited. No trial date has been fixed. The documentation sought concerns the Claimants' dealings with third parties in which the Defendant was not involved and in respect of which it does not claim first-hand knowledge, such that immediate disclosure is not said to be necessary for, for example, the preparation of witness evidence. If permission to appeal is refused, any delay will be short given the applicable procedural time limits. If permission is granted, that would reflect a judicial assessment that the appeal has a real prospect of success, which, they submit, reinforces the appropriateness of maintaining the status quo pending its resolution.

110. Finally, the Claimants emphasise that they have adopted a proportionate and targeted approach. They seek a stay and corresponding extension only in respect of those elements of the November Order which are the subject of the proposed appeal, and not in respect of any other aspect of the Court's directions.

111. In reply, the Defendant relies on the ninth witness statement of Rita Catherine Jaballah ("Jaballah 9").

112. First, it is submitted that the Defendant does not accept that the Claimants will suffer prejudice, but in the alternative if it is accepted that they will, this is insufficient to grant a stay.

113. The Defendants further invite the Court to be reminded that the Claimants have deliberately mislead their solicitors, Counsel and the Court. The Second Claimant produced a scan of a hard copy of her commerce degree certificate from the University of Delhi dated 1987, which included Financial Accounting, Economics and Auditing, contrary to the sustained submission that the Second Claimant was not formally educated in finance and only held a diploma in teaching, as well as the continued insistence that the Claimants complied fully with Request 14 of the DDPO. It is inconceivable that the Second Claimant would have forgotten she was a graduate, yet continued to deny a key document in her possession. The Claimants' conduct emphasizes the importance that the Claimants proceed with their document production exercise urgently so that other documents denied but likely capable of being produced at this stage are collated and preserved. The Defendant does not accept that there would be any prejudice to the Claimants if the collated documents are handed over to the Defendant. It is doubtful that the Claimants have any real prospects on appeal but if an appeal did succeed, the Defendant would simply not be able to use the information/documents produced in the litigation.

114. The Defendant also objects to the statement in Singh 8 that if a stay is granted no prejudice will be suffered by the Defendant as it does not need the information and documentation in order to prepare its witness evidence, and that any delay would be short. The Defendant submits that it could

not finalise its witness evidence until pleadings and document production have closed, as it may wish to carry out further factual investigations as a result of that information and/or put it to witnesses for comment. The realistic impact of a stay would have a knock-on effect on all future steps in proceedings pending determination of the Appeal Notice and, if granted, any appeal.

115. Further, the Defendant does not accept that any delay is likely to be short, as it is unknown how long it would take the Court to determine the Appeal Notice or subsequent appeal if permission is granted, particularly as it is possible the Court may list an oral hearing. If the Appeal Notice is rejected, the Claimants still have another 21 days to renew their application, and with the subsequent steps, the stay could be active for 6 months or more.

Discussion and Conclusion

116. I have carefully considered the Claimants' application for a stay and an extension of time to comply with the November Order, together with the evidence advanced in support and the Defendant's opposition, which have been properly weighed.

117. The application as a whole proceeds on the premise that compliance with the disclosure obligations would undermine the purpose of the proposed appeal and cause disproportionate prejudice to the Claimants. I do not accept that premise.

118. I am not persuaded that the Claimants have demonstrated genuine practical impossibility in complying with Requests 1 to 8. Notwithstanding the circumstances now relied upon to justify a stay and extension, the evidence establishes that the Claimants have in fact been able to locate and produce certain documents responsive to those requests contrary to their previous position. That fact materially weakens the submission that compliance is presently unmanageable. It demonstrates that document retrieval is not beyond the Claimants' practical capacity and that continued compliance remains feasible. The Claimants have not identified specific documents within the requests that they are not able to retrieve within the compliance time period, but instead sought a blanket stay/extension despite having shown to produce previously denied documents within that time.

119. I concede with the Defendant's submission that much of the material sought consists of communications and documents transmitted electronically, primarily by email. The Claimants' reliance on the dispersal of physical records across multiple locations does not adequately explain the inability to conduct targeted electronic searches. The application seeks relief in respect of Requests 1 to 8 as a whole, notwithstanding that the burden asserted relates predominantly to physical retrieval. The application is therefore framed in terms broader than the justification advanced. The Court is not satisfied that the asserted logistical burden establishes undue hardship.

120. Third, I acknowledge the Claimants' evidence that they are private individuals without institutional document management systems and that they appear to be conducting searches personally. I accept that it is their decision to not utilise the help of their instructed counsel, and that this may increase the time required for compliance. However, I also accept the Defendant's submission that, in ordinary practice, such disclosure exercises are undertaken with the assistance of solicitors. The Claimants'

decision to proceed without such assistance does not, without more, constitute a sufficient basis for extending court-ordered deadlines or staying proceedings. The Court therefore accepts that the Claimants' personal approach to document review cannot justify the relief sought, as, in my view, this is simply the consequence of a personal decision that ought not to have an effect on proceedings.

121. Fourth, I have considered the Claimants' reliance on personal circumstances, including travel to India and residence in Dubai, and their position as individuals funding the litigation privately. Those matters are not disregarded. However, I am not satisfied that they establish material prejudice of the kind necessary to justify a stay of proceedings. The evidence does not demonstrate that compliance would cause harm that cannot be compensated in costs or addressed through case management.

122. Fifth, I have found that significant weight should be attached to the Defendant's submissions concerning the Claimants' prior conduct in these proceedings. The evidence concerning the production of the Second Claimant's degree certificate from University of Delhi, and the surrounding circumstances in which relevant information was previously denied yet later produced, supports the Defendant's contention that the Claimants have demonstrated a history of conduct that is at best inconsistent and at worst misleading. This history underscores the importance of timely and supervised disclosure and weighs against granting indulgences that would delay the process of document production and preservation.

123. Further, I am not persuaded that the balance of prejudice favours the grant of a stay. While the Claimants contend that compliance may prove unnecessary if the Appeal Notice succeeds, which it has not, the Court accepts the Defendant's submission that disclosure is integral to the orderly progression of the case. The Defendant cannot reasonably finalise witness evidence, conduct factual investigations, or advance case preparation while document production remains incomplete. The likely effect of a stay would be to halt meaningful progress in the proceedings for a substantial period.

124. In that regard, the Court accepts the Defendant's submission that the practical effect of a stay could extend for six months or more, having regard to the determination of permission to appeal, any renewal application, and any subsequent appeal process. Such delay would be disproportionate to the speculative benefit relied upon by the Claimants. The proceedings have already been ongoing for a number of years, and no trial date has yet been fixed. Granting a stay would therefore run counter to the Overriding Objective, particularly the requirements of efficient case management, proportionality in costs, and the timely resolution of disputes.

125. Finally, I have considered the Claimants' submission that they seek only limited and targeted relief. The Court does not accept that characterisation. The application seeks a blanket suspension of compliance with Requests 1 to 8, notwithstanding that the practical burden asserted does not apply uniformly across those requests. The breadth of the relief sought is not justified by the evidence relied upon.

126. For the foregoing reasons, the Court concludes that the Claimants have not demonstrated sufficient grounds for the grant of a stay of proceedings or for an extension of time to comply with the November Order.

127. In my view, the Claimants have shown an ability to locate and produce documents notwithstanding the circumstances relied upon in support of the application. Their asserted logistical and personal difficulties do not establish undue hardship. Their decision to conduct searches personally, rather than through their legal representatives, cannot justify non-compliance with court-ordered obligations. The history of inconsistent and misleading conduct weighs against the exercise of the Court's discretion in their favour. Most significantly, the prejudice to the orderly and efficient progress of the litigation that would result from a stay is substantial and disproportionate to any benefit asserted by the Claimants.

128. Accordingly, the application for a stay of proceedings is refused. The application for an extension of time is also refused.

Conclusion

129. For the reasons set out above, I am satisfied that the Claimants have not established any error of law or principle capable of sustaining an appeal against the November Order. Each ground advanced has been considered fully and, on careful analysis, fails to demonstrate a real prospect of success. The Court finds that the Strike Out Application was properly dismissed, the RFI and DDPO properly granted to the extent indicated, and the references to "industry standard" correctly understood as relevant only in an evidential context rather than as constituting a freestanding legal criterion.

130. Further, the Claimants' submissions concerning alleged mischaracterisation of their statutory claims, reliance on industry practice, and the purported need for interlocutory clarification of DIFC law are misconceived. The November Order correctly addressed the scope of pleadings, evidential relevance, and case management considerations without determining substantive points of law in advance of trial. No procedural or legal impropriety is identified, and no basis for departing from the exercise of the Court's discretion has been made out.

131. With respect to the Stay and Extension Application, in my view the Claimants have not demonstrated any compelling reason for this relief to be granted. The disclosures required under the November Order remain proportionate, relevant, and necessary for the proper conduct of proceedings. The alleged prejudice arising from compliance is either overstated or self-inflicted, and does not outweigh the legitimate interests of the Defendant in obtaining relevant information for trial. Any extension of time or interim stay would be both unwarranted and prejudicial to the orderly administration of justice.

132. Accordingly, the Court concludes that:

(a) The Appeal Notice carries no real prospect of success and permission to appeal is refused;

(b) The Stay Application is refused; and

(c) No extension of time for compliance with the November Order is granted.